

M/s Tmm Plastic Enterprises v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 13 July 2022 · WRIT - C No. 19101 of 2022 · WRIT - C No. 19101 of 2022 ·
Writ disposed; para 6.8 objection to be decided; coercive action stayed.

HEADNOTE

A writ seeking quashing of a 15 June 2022 assessment of Rs.9,13,691 and restoration of factory supply is disposed without any opinion on merits. The consumer is given liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the assessing officer is to decide it within the next four weeks after hearing. Coercive recovery on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

M/s TMM Plastic Enterprises, running a plastic factory, challenged an assessment order dated 15 June 2022 issued by Paschimanchal Vidyut Vitran Nigam Limited for recovery of Rs.9,13,691. It sought certiorari to quash the demand, a restraint on its enforcement, and mandamus to restore electricity to the factory. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in a time-bound manner in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ challenging an assessment demand is disposed by giving the consumer liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the assessing officer within four weeks. If so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed that a para 6.8 objection, if filed within four weeks, be decided after hearing within the next four weeks, and stayed coercive action on the assessment demand for eight weeks or till disposal, whichever is earlier. ¶ 1

para-6.8-objection-alternate-remedy The writ was disposed without merits adjudication by relegating the consumer to the statutory objection under para 6.8 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 15 JUNE 2022 ASSESSMENT AND ENTITLEMENT TO RESTORATION OF SUPPLY

Writ disposed without expressing any opinion on merits. ¶ 1

